

HOUSE No. 3283

The Commonwealth of Massachusetts

PRESENTED BY:

James Arciero

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the open meeting law.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>1/17/2025</i>
<i>Thomas E. Ellis, Jr.</i>		<i>1/17/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>4/5/2025</i>

HOUSE No. 3283

By Representative Arciero of Westford, a petition (accompanied by bill, House, No. 3283) of James Arciero and Thomas E. Ellis, Jr., for legislation to assure for bidder privacy in certain interviews for public construction contracts. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2981 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the open meeting law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Subsection (c) of section 44A ½ of chapter 149 of the General Laws, as appearing in the
2 2020 Official Edition, is hereby amended by adding the following sentence:-

3 Notwithstanding sections 18 to 25, inclusive, of chapter 30A or any other general or
4 special law to the contrary, when conducting interviews as part of the selection process, a public
5 agency: (i) shall develop a process to ensure that a bidder or a representative of that bidder may
6 not witness or attend, whether in-person or remotely, the interview of another bidder for the
7 same contract; and (ii) shall not publicly disseminate or post written testimony or video from an
8 interview until the interviews of all bidders for that contract are completed.